

26STCV05906 26STCV05906

County: los-angeles

Division: Civil Law and Motion

Department: 510

Hearing date: 2026-09-08

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C510%2C09%2F08%2F2026

Source SHA-256: 0837fdad697043ef7d3ed09f96739aeae1546dc5c36943c1d2c5073259cb2448

Case Number: 26STCV05906 Hearing Date: September 8, 2026 Dept: 510

No. 7 – Midway HFCA LLC v. Arman

Melkonyan

Plaintiff Midway HFCA

LLC's Request for Default Judgment

Plaintiff Midway HFCA LLC

requests court judgment by default against Defendant Arman Melkonyan.

Plaintiff's application for default judgment suffers one defect.

Plaintiff seeks excessive

attorney fees. Attorney fees for a default judgment are generally limited to a specified schedule based on the amount of damages. (Local Rules 3.207(a), 3.214(a).) A plaintiff may recover "a fee greater than listed in the [default] schedule because of extraordinary services." (Rule 3.214(d).) Plaintiff's proposed judgment includes a request for \$5,772 in attorney fees. That is greater than the schedule, which provides for attorney fees of "\$2,890 plus 1% of the excess over \$100,000" for judgments over \$100,000. (Rule 3.214(a).) Per the schedule, Plaintiff is only entitled to \$3,141 [$\$2,890 + (\$25,099.86 \times 0.01)$]. Plaintiff does not show extraordinary services justifying a greater fee.

Disposition

Plaintiff Midway HFCA

LLC's request for default judgment is denied without prejudice. If Plaintiff seeks only the \$3,141 permitted under the fee schedule, the Court will instead grant the request and modify the proposed judgment.